

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Juan Arango	Team: Squad #9	CCRB Case #: 202002254	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/01/2019 7:50 PM	Location of Incident: Intersection of Sedgwick Avenue and Roberto Clemente State Park Bridge	Precinct: 46	18 Mo. SOL 4/1/2021	EO SOL 11/16/2021	
Date/Time CV Reported Thu, 03/19/2020 2:19 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/19/2020 2:19 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Thomas Geberth	07948	957649	046 PCT
2. SGT Eloise Walter	00588	956327	034 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Luis Candelaria	10516	953720	046 PCT
2. POM Paul Velez	31986	955632	046 PCT
3. POM Raymond Diaz	12449	960458	046 PCT
4. POM Agon Pukaj	03404	962029	046 DET
5. POM Samuel Mercado	08374	957851	046 PCT
6. POM Hamze Elreda	05249	960493	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Eloise Walter	Abuse: Sergeant Eloise Walter stopped the vehicle in which § 87(2)(b) was an occupant.	
B.SGT Eloise Walter	Abuse: Sergeant Eloise Walter frisked individuals.	
C.SGT Eloise Walter	Abuse: Sergeant Eloise Walter frisked § 87(2)(b)	
D.PO Thomas Geberth	Abuse: Police Officer Thomas Geberth frisked individuals.	
E.PO Thomas Geberth	Abuse: Police officer Thomas Geberth frisked § 87(2)(b)	
F.SGT Eloise Walter	Abuse: Sergeant Eloise Walter searched § 87(2)(b)	
G.PO Thomas Geberth	Abuse: Police Officer Thomas Geberth searched § 87(2)(b)	
H.SGT Eloise Walter	Abuse: Sergeant Eloise Walter searched the vehicle in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On March 19, 2020, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On October 1, 2019, at approximately 7:50 p.m., at the intersection of Sedgwick Avenue and Roberto Clemente State Park Bridge in the Bronx, § 87(2)(b) was inside one of his friend's vehicle with four other occupants, when Sgt. Walter and PO Geberth of the 46th Precinct anti-crime unit pulled them over (**Allegation A: Abuse of Authority - Vehicle Stop**, § 87(2)(g)). PO Geberth told the driver of the vehicle that they have been pulled over because their license plate was covered. Upon approaching the vehicle, the officers allegedly smelled an odor of marijuana emanating from the cabin of the vehicle. The officers then asked everyone to exit the vehicle. As the occupants, including § 87(2)(b) exited the vehicle, PO Geberth frisked the pockets of their pants (**Allegations B, C, D, and E: Abuse of Authority – Frisk**, § 87(2)(g)). PO Geberth then searched § 87(2)(b) (**Allegations F and G: Abuse of Authority – Search of Person**, § 87(2)(g)). At some point, PO Geberth searched the cabin of the vehicle, the back seats, the car doors, and the trunk (**Allegation H: Abuse of Authority – Vehicle Search**, § 87(2)(g)). At the end of the vehicle stop, the occupants of the vehicle were instructed to go back to the vehicle. However, PO Geberth asked § 87(2)(b) to stand outside of the vehicle. PO Geberth then asked § 87(2)(b) for his name and identification card, which he refused to provide. PO Geberth then frisked § 87(2)(b)'s pockets and put his hand inside one of his pockets; during which, he removed his wallet that contained his ID (**within Allegations D and G**). At the end, § 87(2)(b) was arrested for an active warrant and taken to the stationhouse. § 87(2)(b) was then released from the stationhouse with a summons § 87(2)(b).

§ 87(2)(g), § 87(4-b)

The investigation obtained Body-worn camera (BWC) footage in relation to this incident (**Board Reviews 01 and 02**) from PO Velez and PO Diaz, also of the 46th Precinct, who arrived as backup officers after the vehicle stop had initiated.

§ 87(2)(g)

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Eloise Walter stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Sergeant Eloise Walter frisked individuals.

Allegation (C) Abuse of Authority: Sergeant Eloise Walter frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Police Officer Thomas Geberth frisked individuals.

Allegation (E) Abuse of Authority: Police Officer Thomas Geberth frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Sergeant Eloise Walter searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Thomas Geberth searched § 87(2)(b)

Allegation (H) Abuse of Authority: Sergeant Eloise Walter searched the vehicle in which § 87(2)(b) was an occupant.

During his CCRB interview, § 87(2)(b) explained that he was the passenger inside a vehicle with four of his friends, when an unmarked police vehicle pulled them over (**Board Review 04**). Sgt. Walter and PO Geberth approached the front driver side window and informed the driver that they had been pulled over because their license plate was covered. PO Geberth and Sgt. Walter asked everyone to exit the vehicle. § 87(2)(b) and four of his friends complied and stood at the

rear of the vehicle. PO Geberth then searched the vehicle including the front cabin, the back seats, the car doors, and the trunk. PO Geberth later frisked and searched § 87(2)(b) again in order to obtain his identification when § 87(2)(b) refused to provide it.

§ 87(2)(b) refused to provide the other occupants' contact information. Due to this and the fact that the correct incident date was not determined until two years after the incident, the investigation was unable to identify the other victims and therefore unable to obtain any additional civilian statements.

PO Velez's BWC video begins at 20:16:54 with PO Velez and PO Diaz arriving at the incident location in their RMP (**Board Review 05**). PO Velez approaches PO Geberth and Sgt. Walter, who are standing in front of the front driver side door. PO Geberth pat downs a male individual, who appears to be the driver, right in front of the front driver side door. After the unidentified driver is frisked, PO Geberth instructs him to step by the back of the vehicle and asks the three other occupants of the vehicle, including § 87(2)(b) who are sitting in the back seat, to exit the vehicle. At the 20:17:47 timestamp, PO Geberth pats down the back waist area of an unidentified black male, who was initially sitting in the back driver side seat, then pats down his legs and ultimately his chest and front waist area. At the 20:18:12 timestamp, § 87(2)(b) exits the vehicle and PO Geberth instructs him to face the vehicle as he places his hands on top of the roof. PO Geberth then begins to pat down the front and back of § 87(2)(b)'s waist area, then continues with his pants pockets and then places his hand into the left pocket of § 87(2)(b)'s pants. Right after, PO Geberth frisks § 87(2)(b)'s legs and ultimately back to his waist area. PO Geberth then instructs § 87(2)(b) to go to the rear of the vehicle and PO Velez goes behind § 87(2)(b).

At the 20:18:53 timestamp of PO Velez's BWC footage, while standing at the rear of the vehicle, § 87(2)(b) asks Sgt. Walter to explain to him why they were pulled over; to which, Sgt. Walter says their plate frames and because they were parked in a crosswalk (**Board Review 05**). The parked vehicle does not appear to be in a crosswalk at the time of the stop. § 87(2)(b) then asks Sgt. Walter why they were out of the car, but Sgt. Walter does not answer the question. At 20:19:57, PO Velez's BWC captures PO Geberth on the left side of the frame, opening the front driver side door and leaning into the vehicle. PO Velez remains at the rear of the vehicle with § 87(2)(b), other officers, and the rest of the occupants of the vehicle. At 20:21:33, PO Geberth finishes searching the vehicle. Due to the position of PO Velez at the time, it is unknown if PO Geberth searched the back seat. At no point, PO Velez's BWC video captures the license plate of the vehicle stopped.

The investigation reviewed PO Diaz's BWC footage, which captures the same sequence of events captured in PO Velez's BWC footage (**Board Review 06**). Similarly, this BWC video does not capture the license plate of the vehicle stopped.

During her CCRB interview, Sgt. Walter remembered stopping the vehicle for a traffic violation but did not recall what type of violation the driver committed (**Board Review 07**). Sgt. Walter explained that upon approaching the vehicle, she smelled an odor of marijuana emanating from the main cabin of the vehicle. Sgt. Walter did not remember if there was smoke coming out of the vehicle or how many windows were open at the time. The officers, including PO Geberth, then instructed all the occupants of the vehicle to exit and they were searched upon exiting the vehicle. Sgt. Walter explained that in 2019, the marijuana automobile exception allowed officers to search vehicles and its occupants if they smelled odor of marijuana emanating from the vehicle. Sgt. Walter did not independently recall if the vehicle was searched during this incident. Sgt. Walter did not remember if any of the officers involved ever mentioned the odor of marijuana to the occupants of the vehicle before they were asked to exit the vehicle. Sgt. Walter did not remember if there was any marijuana recovered from the vehicle. Upon being presented with PO Velez's BWC footage, Sgt. Walter stated that this video did not refresh her recollection as to why the vehicle was initially stopped. When asked what violations in regards to plate frames would prompt a vehicle stop, Sgt. Walter explained that there are plate frames that are very thick and they obstruct information regarding the license plate such as the state of issuance. Sgt. Walter also explained that there will be

vehicles with registration stickers on a corner of the license plate, but because of the plate frame, this information gets covered. When asked, Sgt. Walter said she did not remember what exactly the vehicle in this incident had on the license plate. When asked about her statement captured in the BWC regarding the vehicle being parked on a crosswalk, Sgt. Walter said this information did not refresh her recollection of her initial observations. Sgt. Walter did not remember if any summonses were issued for the traffic violations on that day.

During this CCRB interview, PO Geberth stated he did not recall this incident (**Board Review 08**). PO Geberth was presented with the 46th Precinct Command Log for October 1, 2019, listing § 87(2)(b)'s arrest, summons § 87(2)(b) issued to § 87(2)(b) § 87(2)(b), a screenshot of PO Velez's BWC video depicting § 87(2)(b) and three of the other occupants of the vehicle, and was given a synopsis of the incident including the allegations; however, PO Geberth said that none of this information refreshed his recollection of the incident. PO Geberth was also presented with PO Velez's BWC footage which was played entirely. When asked, PO Geberth said this footage did not refresh his recollection of the incident. PO Geberth said this video did not refresh his recollection as to why the vehicle was stopped. PO Geberth identified himself in the video at the 20:17:47 timestamp (0:53-minute mark). However, he did not remember why he frisked the occupants of the vehicle, including § 87(2)(b) or why they were ordered to exit the vehicle. PO Geberth did not remember reaching into § 87(2)(b)'s pocket and did not believe the video showed him reaching into his pocket. PO Geberth acknowledged seeing himself inside the vehicle at the time but did not remember searching the vehicle or why he searched it. PO Geberth did not remember if anyone else was issued a summons or if the driver was issued a summons for the plate frame.

§ 87(2)(b) did not testify as to the odor of marijuana inside the vehicle (**Board Review 04**).

Vehicle Traffic Law 402 (**Board Review 09**) - Number plates shall be kept clean and in a condition so as to be easily readable and shall not be covered by glass or any plastic material, and shall not be knowingly covered or coated with any artificial or synthetic material or substance that conceals or obscures such number plates or that distorts a recorded or photographic image of such number plates, and the view of such number plates shall not be obstructed by any part of the vehicle or by anything carried thereon.

People v. Chestnut, 43 A.D. 2d 260 (1974) (**Board Review 10**) – The smell of marijuana is sufficient to provide officers with probable cause to search a vehicle and its occupants.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to four of CCRB complaints and has been named as a victim in 14 of allegations (**Board Review 15**):
 - § 87(2)(b)
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- PO Geberth has been a member of service for six years and has been a subject in six CCRB complaints and 19 allegations, of which three were substantiated:
 - 201806991 involved substantiated allegations of abuse of authority – other and stop, against PO Geberth. The Board recommended formalized training for both allegations and the NYPD imposed formalized training on both.
 - 201901129 involved substantiated allegations of discourteous word against PO Geberth. The Board recommended instructions and the NYPD imposed instructions. § 87(2)(g)
- Sgt. Walter has been a member of service for seven years and has been a subject in six CCRB complaints and 22 allegations, none of which were substantiated (See officer history).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Notice of Claim inquiry was sent on October 25, 2021. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 9

Investigator: Juan Arango Inv. Juan Arango 10/29/2021
Signature Print Title & Name Date

Squad Leader: Monique West IM Monique West 11/01/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date